due process of law; nor deny to any *person* within its jurisdiction the equal protection of the laws." (Italics added.)

"Persons" in the first sentence plainly includes only human beings, for corporations are not "born or naturalized."

Corporations are not "citizens" within the meaning of the first clause of the second sentence. *Western Turf Assn.* v. *Greenberg,* 204 U. S. 359, 363; *Selover, Bates & Co.* v. *Walsh,* 226 U. S. 112, 126.[2]

It has never been held that they are persons whom a State may not deprive of "life" within the meaning of the second clause of the second sentence.

"Liberty" in that clause is "the liberty of natural, not artificial, persons." *Western Turf Assn.* v. *Greenberg, supra,* p. 363.

But "property" as used in that clause has been held to include that of a corporation since 1889 when *Minneapolis & St. L. R. Co.* v. *Beckwith,* 129 U. S. 26, was decided.

It requires distortion to read "person" as meaning one thing, then another within the same clause and from clause to clause. It means, in my opinion, a substantial revision of the Fourteenth Amendment. As to the matter of construction, the sense seems to me to be with Mr. Justice Woods in *Insurance Co.* v. *New Orleans, supra,* p. 88, where he said, "The plain and evident meaning of the section is, that the persons to whom the equal protection of the law is secured are persons born or naturalized or endowed with life and liberty, and consequently natural and not artificial persons."

History has gone the other way. Since 1886 the Court has repeatedly struck down state legislation as applied

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[2] Cf. McGovney, A Supreme Court Fiction, 56 Harv. L. Rev. 853, 1090, 1225, dealing with corporations in the diverse citizenship jurisdiction of the federal courts.

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